

25NWCV04634 25NWCV04634

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Case Number: 25NWCV04634 Hearing Date: September 4, 2026 Dept: C

LISA MARIE

VERNOLA-SALAS v. URBAN SOCCER 5 CENTER, LLC

CASE NO. 25NWCV04634

MOTIONS IN

LIMINE: RULINGS AS OF SEPTEMBER 4, 2026 AT 9:00 A.M.

I.

Defendant's Motions in Limine

Defendants'

MIL #1

Defendant moves

for an order precluding Plaintiff from calling as a witness or introducing into

evidence at trial any matter which Plaintiff did not disclose during discovery. Because Defendant does not identify any specific

evidence or testimony subject to exclusion, Defendant's MIL#1 is DENIED without prejudice.

II.

Plaintiff's Motions in Limine

Plaintiff's

Motion in Limine #1

Plaintiff moves

for an order to exclude evidence of “offsets.” Plaintiff argues that the issue of Defendant’s entitlement to offsets based on Plaintiff’s alleged breaches of the lease was already decided by Judge Goorvitch in *Urban Soccer 5 Center, LLC v. Lisa Vernola-Salas, et al.*, LASC Case No. 22STCV37369. In that case, Urban Soccer sues for damages from being deprived of certain square footage used by other businesses, among other claims. When ruling on the writ of attachment, Judge Goorvitch found that “Urban Soccer has not proven any defense to this claim or demonstrated that it is necessarily entitled to an offset.” (4/9/25 Minute Order, Case No. 22STCV37369.) Plaintiff also argues evidence of offsets is prohibited under Article 4.2 of the Lease and EC § 352.

Defendant

argues that it is entitled to present evidence of offsets to show that the amount of rent Plaintiff demanded in the 3-day notice was not a good faith estimate of the sums due pursuant to CCP § 1161.1(a). Defendant also argues it has pleaded offsets in its Seventeenth Affirmative Defense, the issue is for the jury to decide, Defendant may not be deprived of presenting such evidence in a motion in limine, and Judge Goorvitch’s order has no preclusive effect.

Plaintiff cites

no authority in support of the argument that res judicata bars evidence of offsets at trial. A court’s ruling on a writ of attachment has no such effect. (CCP § 484.100.) Nevertheless, Plaintiff’s MIL #1 is GRANTED on other grounds.

Article 4.2 of the Lease states, “Lessee shall cause payment of Rent to be received by Lessor in lawful money of the United States, without offset or deduction (except as specifically permitted in this lease), on or before the day on which It Is due.” As to offsets relating to square footage, Article 2.1 of the Lease states in relevant part, “While the approximate square footage of the Premises may have been used in the marketing of the Premises for purposes of comparison, the Base Rent stated herein Is NOT tied to square footage and Is not subject to adjustment should the actual size be determined to be different. Note: Lessee is advised to verify the actual size prior to executing this Lease.”

Moreover,

Article 2.4 states in relevant part, “Acknowledgements. Lessee acknowledges that: (a) It has been given an opportunity to inspect and measure the Premises, (b)) it has been advised by Lessor and/or Brokers to satisfy itself with respect to the size and condition of the Premises ... and their suitability for

Lessee's intended use, (c) Lessee has made such investigation as it deems necessary with reference to such matters and assumes all responsibility therefor as the same relate to its occupancy of the Premises, (d) it is not relying on any representation as to the size of the Premises made by Brokers or Lessor, (e) the square footage of the Premises was not material to Lessee's decision to lease the Premises and pay the Rent stated herein, and (f) neither Lessor, Lessor's agents, nor Brokers have made any oral or written representations or warranties with respect to said matters other than as set forth in this lease ...” It is undisputed that the businesses which operate within the structure leased by Defendants were in operation at the time Defendants signed the lease. Thus, under the express terms of the lease, evidence of an offset based upon a variance in square footage is inadmissible to dispute the reasonableness of the amount demanded by Plaintiff in the 3-day notice.

Plaintiff's

Motion in Limine #2

Plaintiff moves

to exclude from trial an “irrelevant ‘expert’ and other testimony” under EC § 352. Plaintiff contends that Defendant has refused to disclose the witnesses Defendant intends to call. Plaintiff anticipates that Defendant will seek to call experts to testify about interpretation of the lease, damages resulting from certain parking spaces and improper metering of utilities, variance in square footage, survey of the property, and redevelopment of the surrounding area. Because Plaintiff does not identify any specific expert or testimony subject to exclusion, Plaintiff's MIL#2 is DENIED without prejudice.

Plaintiff's

Motion in Limine #3

Plaintiff moves

for an order excluding evidence of any potential future development of Plaintiff's property, including evidence of any “Heart of Norwalk” plans, because such evidence is speculative and irrelevant to this unlawful detainer case. Defendant argues that Plaintiff's 3-day notice invokes the good faith estimate provision of CCP § 1161.1, so Plaintiff's good faith, or lack thereof, is an issue in this case. Moreover, Defendant argues it is entitled to explore Plaintiff's bias, interest and motive. Defendant contends that the Subject Property sits on a portion of the

Firestone Corridor which is slated for redevelopment into residential units and Plaintiff, as a member of the City of Norwalk Planning Commission, has knowledge of the planned redevelopment. The Court has previously ruled that evidence of the Heart of Norwalk plan to show Plaintiff's subject motivation in bringing this unlawful detainer action is not within the proper scope of discovery and is inadmissible under EC § 352. The same reasoning applies here. Plaintiff's MIL#3 is GRANTED.

Plaintiff's
Motion in Limine #4

Plaintiff moves
to exclude evidence of "monetary claims" by Defendant against Plaintiff. It appears Plaintiff is referring to the offsets which are the subject of Urban Soccer 5 Center, LLC v. Lisa Vernola-Salas, et al., LASC Case No. 22STCV37369. Plaintiff's MIL #4 is DENIED because it is duplicative of Plaintiff's MIL #1.

Plaintiff's
Motion in Limine #5

Plaintiff moves
to exclude evidence of Plaintiff's bank records, loan documents, and tax records because they are irrelevant, protected by the right of privacy, and inadmissible under EC § 352. Defendant argues that Plaintiff's bank records are relevant to the reasonableness of the rent Plaintiff demanded in the 3-day notice, Plaintiff's standing, and what Plaintiff actually paid in property taxes and utilities. Defendant also argues that Plaintiff has placed her tax returns at issue because Plaintiff sues to collect rental income from a specific property on a notice which provides an estimate of rent due. Plaintiff's MIL #4 is GRANTED. The calculation of rent due for purposes of the 3-day notice is based upon the terms of the lease, not the actual amount of rent collected and deposited into Plaintiff's bank accounts. The Court finds that the probative value of Plaintiff's bank records, loan documents, and tax returns are substantially outweighed by undue prejudice to Plaintiff.

Plaintiff's
Motion in Limine #6

Plaintiff moves
for an order excluding evidence of any previous drafts of the lease because

they are evidence of negotiations between the parties and do not reflect the agreed upon terms. (CCP §§ 1625, 1856; CC § 1639.) Defendant argues that previous drafts of the lease are relevant to show the circumstances of contracting and the genuineness of the October 8, 2014 Lease Agreement, which Plaintiff denies signing. The Court will hear further argument from the parties regarding Plaintiff's MIL #6.

Plaintiff's

Motion in Limine #7

Plaintiff moves

for an order excluding evidence of alleged damages at issue in Urban Soccer 5 Center, LLC v. Lisa Vernola-Salas, et al., LASC Case No. 22STCV37369. In particular, Plaintiff moves to exclude testimony by Defendant's Real Estate Appraiser, Daryl Johnson, regarding economic losses sustained by Defendant because it cannot use portions of the property occupied by other businesses. Plaintiff also moves to exclude argument that Defendant has been constructively evicted because Defendant remains in possession of the property and Judge Goorvitch already decided the issue against Defendant in his April 9, 2025 ruling granting Vernola-Salas's application for prejudgment writ of attachment.

Plaintiff's MIL #7 is GRANTED on other grounds. As discussed in Plaintiff's MIL #1 and #4, and under the express terms of the lease, evidence of an offset based upon a variance in square footage is inadmissible to dispute the reasonableness of the amount of rent demanded by Plaintiff in the 3-day notice.

Plaintiff's

Motion in Limine #8

Plaintiff moves

for an order precluding Defendant from making "Golden Rule" and "Reptile Theory" arguments. Specifically, Plaintiff moves the Court for an order precluding Defendant from suggesting to jurors that they should put themselves in the place of a tenant.

Defendant states it has no intention of doing so. Thus, Plaintiff's MIL #8 is DENIED as MOOT.

Plaintiff's

Motion in Limine #9

Plaintiff moves

for an order precluding Defendant from presenting evidence of “hypothetical damages” through a real estate appraiser, Daryl Johnson, who may be called to testify that Defendant suffered lost profits due to a variance in square footage. The motion raises the same issue addressed in Plaintiff’s MIL #1, #4, and #7. Thus, Plaintiff’s MIL #9 is DENIED because it is duplicative.